What are these issues? While the hearing in the court was nearing its end, lawyer Usha Ramanathan wrote (*Frontline*, 6 May 2005): ‘The court will not, and is not expected to, concern itself with aspects that are not directly relevant to the case of the accused before it. So, many questions will inevitably, and predictably, remain uninvestigated in the court’s docket.’[4] One of the questions Ramanathan asked was, ‘Was it an act of war? Or was it a terrorist act? Or perhaps a protest employing extremist methods? We don’t know. But, on the presumption that it was an act of war, troops were massed along the border, Indian and Pakistani soldiers glowered at each other for nearly a year, enormous resources were sunk into aggressive posturing, soldiers lost their lives, over a hundred children reportedly fell prey to land mines, and many farmers along this mined, potential battlefield were left without a livelihood.’[5]

Noting that Mohammad Afzal, the prime accused, was a surrendered militant in regular contact with the Special Task Force (STF) in Kashmir, Ramanathan observed, ‘A surrendered militant is no longer a militant but one who has chosen to return. The surrendered militant is in the uneasy zone where he is suspect on both sides of the divide. The militants see in him a turncoat. The security forces and the STF hold him in their thrall, while viewing him constantly with suspicion.’[6] Specifically, she notes, ‘If a person under the watchful eye of the STF could be part of a conspiracy to wage war against the state, how can anything less than a public inquiry do? For this is not about the guilt or innocence of one man, but about how a system works and what it means, to democracy, sovereignty and the security of the state.’[7]

Yet, the ‘astonishing fact’, Ramanathan suggested, was that ‘there has never been a public inquiry into the attack on Parliament: not by a parliamentary committee, not by the media, not an expanded search by the police, nor even a commission of inquiry. When we picture the parliamentarians huddled inside Parliament as the sounds from the battleground outside told them of their narrow escape, it is difficult to understand why no one, not in the ruling coalition, not in the opposition, not in the secretariat of Parliament, thought there should be an immediate and deep-reaching inquiry.’[8]

Elsewhere (*The Book Review*), Ramanathan wrote, ‘The only inquiry of which the public has knowledge has been translated into criminal proceedings in the court. The microscopic nature of a trial in court, however, means that it is only the accused whose conduct will be interrogated and judged.’[9]